

Indian Enterprise Development Service Rules, 2019

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Union of India - Act

Indian Enterprise Development Service Rules, 2019

UNION OF INDIA

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Indian Enterprise Development Service Rules, 2019

Rule INDIAN-ENTERPRISE-DEVELOPMENT-SERVICE-RULES-2019 of 2019

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Indian Enterprise Development Service Rules, 2019

Published vide Notification No. G.S.R. 536(E), dated 31.7.2019

Last Updated 1st August, 2019

G.S.R. 536(E). - In exercise of the powers conferred by the proviso to article 309 of the constitution, the President hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Indian Enterprise Development Service Rules, 2019.

(2)

They shall come into force from the date of their publication in the Official Gazette.

2.

Definition.

- In these rules, unless the context otherwise requires,

(a)

"Commission" means the Union Public Service Commission;

(b)

"Controlling Authority" means the Government of India in the Ministry of Micro, Small and Medium Enterprises, Office of Development Commissioner (MSME);

(c)

"Departmental candidates" means the officers appointed under these rules and officers appointed under the rules specified in Sixth Schedule;

(d)

"Departmental Promotion or Confirmation Committee" means a Committee as specified in the Third Schedule for considering promotion or confirmation respectively;

(e)

"Duty post" means any post included in the First Schedule;

(f)

"Government" means the Central Government;

(g)

"Examination" means;

(i)

in so far as it relates to the posts of engineers (Electrical or Mechanical or Electronics), the combined competitive examination to be held by the Commission for recruitment to the Engineering Services Group 'A' and Group 'B' and;

(ii)

recruitment by selection in so far as it relates to the posts of engineers (Chemical or Metallurgical or Leather and Footwear or Hosiery or Food or Glass and Ceramic or Metal Finishing), by direct recruitment by the Commission.

(h)

"Regular service" in relation to any Grade means, the period or periods of service in that Grade rendered after appointment;

(i)

"Schedule" means a Schedule appended to these rules;

(j)

"Service" means the Indian Enterprise Development Service constituted for technical officers of Office of Development Commissioner(MSME) Ministry of MSME, under rule 3 and consists of the posts or grades or timescales mentioned in First Schedule annexed to these rules and comprises of the following categories of officers, namely:-

(i)

Mechanical Engineers,

(ii)

Electrical Engineers,

(iii)

Electronics Engineers,

(iv)

Chemical Engineers,

(v)

Metallurgical Engineers,

(vi)

Leather and Footwear Technologists,

(vii)

Hosiery Technologists,

(viii)

Food Technologists,

(ix)

Glass and Ceramic Technologists,

(x)

Metal Finishing Technologists,

(k)

"Grade" means a grade to the service as per rule 3.

3.

Constitution of Indian Enterprise Development Service.

(1)

There shall be constituted a Service to be known as the Indian Enterprise Development Service consisting of members specified in rule 5.

(2)

The service shall comprise of four grades namely Senior Administrative Grade (SAG), Junior Administrative Grade (JAG), Senior Time Scale (STS) and Junior Time Scale (JTS) in which all posts shall be classified as Group 'A' and feeder grade namely, Assistant Director-II which shall be classified as Group 'B', as specified in the First Schedule.

4.

Grades, authorised strength and its review.

(1)

The duty posts included in the various Grades of the Service, their number and the pay level in the pay matrix on the commencement of these rules, shall be as specified in the First Schedule:

(2)

After the commencement of these rules, the authorized strength of the duty posts in various Grades shall be such as may, from time to time, be determined by the Government and the Government may from time to time, make such alteration in the sanctioned strength of duty posts in various grades as it thinks necessary through the established procedure in accordance with the general orders or instructions issued by the Government from time-to-time.

(3)

The Government may, in consultation with the Commission, include in the Service such other posts (other than those in First Schedule) as may be deemed to be equivalent to the posts included in the First Schedule in status, pay level, and professional context or exclude from the service a duty post included in the said Schedule through the established procedure in accordance with the general orders or instructions issued by the Government from time-to-time.

(4)

The Government may, from time to time and in consultation with the Commission, appoint an officer to a duty post whose post is included in the Service under sub-rule (3), to the appropriate Grade of the Service in a temporary capacity or in a substantive capacity as it thinks fit subject to the officer possesses minimum qualification prescribed for the service and fix his seniority in that Grade in accordance with the general orders or instructions issued by the Government from time to time.

5.

Member of service.

(1)

The following persons shall be the members of the Service, namely:-

(a)

persons appointed to duty posts under rule 6; and

(b)

persons appointed to duty posts under sub-rule (4) of rule 4 and rule 7.

(2)

A person appointed under clause (a) of sub-rule (1) shall on such appointment be deemed to be the member of the Service in the corresponding Grade, applicable to him as specified in the First Schedule.

(3)

A person appointed under clause (b) of sub-rule (1) shall be a member of the Service in the corresponding Grade applicable to him as specified in the First Schedule from the date of such appointment.

6.

Initial constitution of service.

- All the existing departmental candidates specified in Sixth Schedule, holding Group 'A' and Group 'B' posts in various grades on regular basis or holding lien on such duty posts on the date of commencement of these rules shall be deemed to be appointed to the corresponding duty posts and the grade of the service in a substantive or officiating capacity, as the case may be.

7.

Future maintenance of service.

- Any vacancy in any of the Grades referred to in the First Schedule after the commencement of these rules shall be filled in the following manner, namely: -

(a)

appointments to various Grades of the Service shall be made in accordance with the method of recruitment, the field of promotion, the minimum qualifying service in the next lower Grade and other eligibility conditions for appointment by promotion or transfer on deputation, as the case may be, as specified in the Second Schedule.

(b)

the selection of officers for promotion shall be made on the recommendation of the Departmental Promotion Committee in accordance with the Third Schedule;

(c)

the educational and other qualifications, experience and age limits for appointment by direct recruitment to Junior Time Scale (Assistant Director Grade I) and Assistant Director (Grade II) of the Service shall as specified in the Fourth Schedule and Fifth Schedule respectively.

8.

Probation.

(1)

Every officer appointed to the Service either by direct recruitment or by promotion in Junior Time Scale (Assistant Director Grade I) and Feeder Grade (Assistant Director Grade II) shall be on probation for a period of two years:

Provided that the Controlling Authority may extend the period of probation in accordance with the instructions issued by the Government from time to time in this regard:

Provided further that any decision for extension of period of probation shall be taken ordinarily within eight weeks after the expiry of the period of probation and communicated in writing to the concerned officer together with the reasons for so doing within the said period.

(2)

On completion of the period of probation or any extension thereof, the officer shall, if considered fit for permanent appointment, be retained in his appointment on regular basis and be confirmed in due course against the available substantive vacancy against which the officer was recommended for recruitment by the commission.

(3)

If, during the period of probation or any extension thereof, as the case may be, the Government is of the opinion that an officer is not fit for permanent appointment, it may without any reason being assigned, -

(a)

if he was appointed by direct recruitment, discharge him from Service in that post;

(b)

if he was appointed by promotion, revert him to the post held by him immediately before such promotion.

(4)

During the period of probation or any extension thereof, the officer may be required to undergo such courses of training and instructions and pass such examinations and tests as the Government may consider necessary as a condition to the satisfactory completion of probation.

(5)

Subject to sub-rules (1) to (4), the other matters relating to probation of the members of the Service shall be governed by the instructions issued by the Government from time to time in this regard.

9.

Seniority.

(1)

The inter-se seniority of the officers appointed to the various Grades mentioned in the First Schedule at the initial constitution of the service under rule 6 shall be determined in accordance with the general instructions issued by the Government from time to time.

(2)

The seniority of the officers appointed to the Service after the initial constitution shall be determined in accordance with the general orders or instructions issued by the Government from time-to-time.

(3)

The seniority of the officers appointed under sub-rule (4) of rule 4 shall be fixed in the manner provided in these rules.

(4)

The seniority of officers not covered under these rules, shall be in accordance with the general orders or instructions applicable to the Central Civil Services and shall be determined by the Government in consultation with the Commission.

(5)

In case the fixation of the seniority under these rules results in difficulties or anomalies, the same shall be determined by the Government in consultation with the Commission.

10.

Appointment to service.

- All appointments to the Service shall be made by the Controlling Authority for all the posts in various Grades of the Service.

11.

Liability for service in any part of India and other conditions of service.

(1)

The officers appointed to the Service shall be liable to serve anywhere in India or outside.

(2)

The conditions of service of the members of the Service, in respect of matters for which no provision is made in these rules, shall be the same as are applicable, from time to time, to the officers of the Central Civil Service in general.

12.

Disqualification.

- No person, -

(a)

who has entered into or contracted a marriage with a person having a spouse living; or

(b)

who, having a spouse living has entered into or contracted a marriage with any person, shall be eligible for appointment to the Service:

Provided that the Government may, if satisfied, that such marriage is permissible under the personal law applicable to such person and the other party to the marriage and that there are other grounds for so doing, exempt any person from the operation of these rules.

13.

Power to relax.

- where the Government is of the opinion that it is necessary or expedient so to do, it may by order, for reasons to be recorded in writing and in consultation with the Commission, relax any of the provisions to these rules with respect to any class or category of persons.

14.

Saving.

- Nothing in these rules shall effect reservations, relaxation of age limit and other concessions required to be provided for the persons belonging to the Scheduled Castes, the Scheduled Tribes, Other Backward Classes, ex- Servicemen and other special categories of persons in accordance with the orders issued by the Government from time to time in this regard.

15.

Residuary matters.

- In regard to matters not specifically covered by these rules, the members of the Service shall be governed by the rules, regulations and orders applicable to the Central Civil Services or equivalent posts in general.

16.

Interpretation.

- If any question relating to interpretation of these rules arises, it shall be referred to the Government who shall decide the same.

17.

Repeal and Savings.

(1)

With the notification of Indian Enterprise Development Service Rules 2019, the existing recruitment rules mentioned in the Sixth Schedule would stand repealed.

(2)

Notwithstanding such repeal, any appointment made or anything done or any action taken under the relevant rules mentioned in the Sixth Schedule, so repealed under sub-rule (1) of rule 17 supra shall be deemed to have been validity made or taken under these rules.

First Schedule

[See Rules 2 (e), (j), (k); 4 (1), (3); 5 (2), (3); 7 and 9 (1)]

Name, Number and Pay Level in Pay Matrix of duty posts included in the various grades of the Indian Enterprise Development Service

Sl.No.

Grade

Name of the duty Posts included in the Grade

Number of duty posts

Pay Level in Pay Matrix (As per 7th CPC)

1

2

3

4

5

1.

Senior Administrative Grade

Additional Development Commissioner

6

Level-14

(Rs.1,44,200-2,18,200)

2.

Junior Administrative Grade

Director

36

Level-13

(Rs.1,23,100 - 2,15,900)

3.

Senior Time Scale

Joint Director

80

Level-12

(Rs.78,800 - 2,09,200)

4.

Senior Time Scale

Deputy Director

140

Level-11

(Rs.67,700 - 2,08,700)

5.

Junior Time Scale

Assistant Director Grade I

180

Level-10

(Rs. 56,100 - 1,77,500)

6.

Feeder Grade (Group B)

Assistant Director Grade II

155

Level-7

(Rs. 44,900 - 1,42,400)

7.

Feeder Grade (Group B)

Investigator

20*

Level-6

(Rs. 35,400 - 1,12,400)

* No fresh recruitment in this grade will be made

Second Schedule

[See Rule 7(a)]

Method of recruitment, field of promotion, minimum qualifying service in the next lower grade and other eligibility conditions for appointment of officers by promotion, as the case may be, to duty posts included in the various grades of the Indian Enterprise Development Service.

Sl. No.

Grade/ Name of Post/ Pay Matrix level

Method of Recruitment

Field of Selection and minimum qualifying service for promotion

1

2

3

4

1.

Senior Administrative

GradeAdditional Development Commissioner

Level - 14 (Rs.1,44,200-2,18,200)

By promotion

Director in Level - 13 of the Pay Matrix with three years of regular service in the grade.

2.

Junior Administrative

GradeDirector

Level - 13 (Rs.1,23,100-2,15,900)

By promotion

Joint Director in Level - 12 of the Pay Matrix with five years of regular service in the grade and have successfully completed 2 weeks training in the field as prescribed by the department.

3.

Senior Time ScaleJoint Director

Level - 12 (Rs.78,800-2,09,200)

By promotion

Deputy Director in Level - 11 of the Pay Matrix with five years of regular service in the grade and have successfully completed 2 weeks training in the field as prescribed by the department.

4.

Senior Time Scale Deputy Director

Level - 11 (Rs.67,700-2,08,700)

By promotion

Assistant Director Grade I in Level - 10 of the Pay Matrix with five years of regular service in the grade and have successfully completed 2 weeks training in the field as prescribed by the department.

5.

Junior Time Scale Assistant Director Grade I

Level - 10 (Rs. 56,100-1,77,500)

(i) 50% by promotion

(ii) 50% by direct recruitment

(i) Direct

recruitment to be made in the manner specified in Fourth Schedule

(ii) Assistant Director Grade II in Level - 7 of

the Pay Matrix with three years of regular service in the grade and have successfully completed 2 weeks training in the field as prescribed by the department.

6.

Feeder Grade Assistant Director Grade II

Level - 7 (Rs. 44,900-1,42,400)

Promotion failing which by direct recruitment.

(i) Investigator in

Level - 6 of the Pay Matrix with five years of regular service in the grade and have successfully completed 2 weeks training in the field as prescribed by the department.

(ii) Direct recruitment to be made in the manner specified in Fifth Schedule

Note. - (1) The crucial date for determining the eligibility of officer for promotion to various grades will be as per the instructions issued by Department of Personnel and Training from time to time.

(2)

Where Juniors who have completed their qualifying or eligibility service are being considered for promotion, their seniors would also be considered provided that they are not short of requisite or eligibility service by more than half of such qualifying or eligibility service or two years whichever is less, and have successfully completed their probation period for promotion to next higher grade along with their Juniors who have already completed such qualifying or eligibility service.

(3)

Educational qualification prescribed for induction by promotion in to the service at the Junior Time Scale level shall not be applicable in the case of feeder grade officers in position on the date of notification of these rules.

Note. - There shall be 100 % direct recruitment to the feeder grade of Assistant Director Grade II (Level - 7) after the entire incumbent Investigator (Level - 6) are promoted to the feeder grade of Assistant Director Grade II (Level - 7).

Third Schedule

[See rule 2 (d); 7 (b)]

Composition of the Departmental Promotion Committee for considering cases of promotion or confirmation to various grades of the Indian Enterprise Development Service

Sl. No.

Grade

Composition of Departmental Committee (for Promotion) to the grade

Composition of Departmental Promotion Committee (for Confirmation) to the Grade

1

2

3

4

1

Senior Administrative Grade (SAG) (Level - 14)

{|

1. Chairman / Member, UPSC

- Chairman

2. Secretary (MSME)

- Member

3. Additional Secretary and Development Commissioner (MSME)

- Member

| Not applicable

|-

| 2

| Junior Administrative Grade (JAG) (Level - 13)

|

1. Chairman / Member, UPSC

- Chairman

2. Additional Secretary and Development Commissioner (MSME)

- Member

Additional Development Commissioner in Office of Development Commissioner (MSME) - Member

- Member

| Not applicable

|-

| 3

| Senior Time Scale (STS) (Level - 12)

|

1. Chairman / Member, UPSC

- Chairman

2. Additional Secretary and Development Commissioner (MSME)

- Member

3. Additional Development Commissioner in Office of Development Commissioner (MSME)

- Member

| Not applicable

|-

| 4

| Senior Time Scale (STS) (Level - 11)

|

1. Additional Development Commissioner in Office of Development Commissioner (MSME)

- Chairman

2. Deputy Secretary / Director (Admn.) in Office of Development Commissioner (MSME)

- Member

3. Deputy Secretary / Director (MSME) in Office of Development Commissioner (MSME)

- Member

| Not applicable

| -

| 5

| Junior Time Scale (JTS) (Level - 10)

| 1. Chairman/Member, UPSC - Chairman

2. Additional Development Commissioner (Admn.) / Joint Development Commissioner in charge of Admin in Office of Development Commissioner (MSME) - Member

3. Deputy Secretary /Director in Office of Development Commissioner (MSME) - Member

| 1. An officer of Junior Administrative Grade in Indian Enterprise Development Service Cadre - Chairman

2. An officer of Senior Time Scale in Indian Enterprise Development Service Cadre - Member

3. Deputy Secretary /Director in Office of Development Commissioner (MSME) - Member

| -

| 6

| Feeder Grade (Assistant Director Grade II) (Level - 7)

| 1. Deputy Secretary / Director in Office of Development Commissioner (MSME) - Chairman

2. Under Secretary, Office of Development Commissioner (MSME) - Member

3. Under Secretary, Office of Development Commissioner (MSME) - Member

Note:- Departmental Promotion Committee (DPC) is for the consideration of promotion of investigators.

| 1. An officer of Junior Administrative Grade in Indian Enterprise Development Service Cadre - Chairman

2. An officer of Senior Time Scale in Indian Enterprise Development Service Cadre - Member

3. Deputy Secretary /Director in Office of Development Commissioner (MSME) - Member

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Note. - Cabinet has decided that no fresh recruitment shall be made against the post of Investigator and will exist till all the Investigators are adjusted.

Fourth Schedule

[See rule 7 (c)]

Method for direct recruitment in the Junior Time Scale (Assistant Director Grade I) of the Indian Enterprise Development Service:

(a)

For Mechanical or Electrical or Electronics:

By a competitive examination in accordance with examination rules published by the Union Public Service Commission for recruitment to the Engineering Services Group-A and;

(b)

For Chemical or Metallurgical or Leather and Footwear or Hosiery or Food or Glass and Ceramic or Metal Finishing:

Recruitment by selection, by the Union Public Service Commission in accordance with the following age and minimum educational qualification:

(i)

Age limit. - A candidate for recruitment by selection must not be more than thirty years of age.

(Relaxable for Government Servants upto five years in accordance with the instructions or order issued by the Government)

Note: The Crucial date for determining the age limit shall be as advertised by Union Public Service Commission.

(ii)

Educational qualifications:

Candidates must possess the educational qualification as under:

Name of Discipline or Trade

Essential Educational Qualification

Chemical

Master Degree in Chemistry or Industrial

Chemistry or Bachelor Degree in Chemical Technology or Chemical Engineering from a recognized University or Institute.

Hosiery

Bachelor Degree in Textile Technology or Hosiery Technology or Knitting Technology from a recognized University or Institute .

Metal Finishing

Master Degree in Chemistry or Industrial Chemistry or Bachelor Degree in Chemical Technology or Chemical Engineering from a recognized University or Institute .

Metallurgy

Bachelor Degree in Metallurgical Engineering or Metallurgical Engineering and Material Science or Metallurgical and Materials Engineering from a recognized University or Institute.

Food

Bachelor of Technology in Food Technology or Post Graduate Diploma in Fruits Technology from a recognized University or Institute .

Glass and Ceramic

Bachelor Degree in Glass or Ceramics Technology from a recognized University or Institute.

Leather and Footwear

Bachelor Degree in Leather Technology from a recognized University or Institute.

Fifth Schedule

[See rule 7 (c)]

Method for direct recruitment in the Feeder Grade (Assistant Director Grade II) of the Indian Enterprise Development Service:

(a)

For Mechanical or Electrical or Electronics:

By a competitive examination in accordance with Examination Rules published by the Union Public Service Commission for recruitment to the Engineering Services Group-B and;

(b)

For Chemical or Metallurgical or Leather and Footwear or Hosiery or Food or Glass and Ceramic or Metal Finishing:

Recruitment by selection, by Union Public Service Commission in accordance with the following age and minimum educational qualification:

(i)

Age limit. - A candidate for recruitment by selection must not be more than thirty years of age.

(Relaxable for Government Servants upto five years in accordance with the instructions or order issued by the Government)

Note: The Crucial date for determining the age limit shall be as advertised by Union Public Service Commission.

(ii)

Educational qualifications:

Candidates must possess the educational qualification as under:

Name of Discipline or Trade

Essential Educational Qualification

Chemical

Master Degree in Chemistry or Industrial Chemistry or Bachelor Degree in Chemical Technology or Chemical Engineering from a recognized University or Institute.

Hosiery

Bachelor Degree in Textile Technology or Hosiery Technology or Knitting Technology from a recognized University or Institute .

Metal Finishing

Master Degree in Chemistry or Industrial Chemistry or Bachelor Degree in Chemical Technology or Chemical Engineering from a recognized University or Institute .

Metallurgy

Bachelor Degree in Metallurgical Engineering or Metallurgical Engineering and Material Science or Metallurgical and Materials Engineering from a recognized University or Institute.

Food

Bachelor of Technology in Food Technology or Post Graduate Diploma in Fruits Technology from a recognized University or Institute .

Glass and Ceramic

Bachelor Degree in Glass or Ceramics Technology from a recognized University or Institute.

Leather and Footwear

Bachelor Degree in Leather Technology from a recognized University or Institute.

Sixth Schedule

[See rule 2 (c)]

(i)

The Small Scale Industries Organization (Group 'A' and Group 'B') (Gazetted Posts) Recruitment Rules, 1962.

(ii)

The Small Industries Development Organisation (Technical Publicity Division - Group 'A' posts) Recruitment Rules, 1977.

(iii)

The Ministry of Industry, Small Industry Development Organisation Group 'A' and Group 'B' posts Recruitment Rule, 1996.

(iv)

Serial number 5 and 6 of the Schedule of the Ministry of Industry, Small Industry Development Organisation Group 'A' and Group 'B' Posts Recruitment Rules, 2000.

(v)

The Investigators (Small Industries Development Organisation) Recruitment Rules, 2000.

(vi)

The Ministry of Small Scale Industries, Small Industry Development Organisation the Deputy Director (Chemical) Recruitment Rules, 2002.

(vii)

The Ministry of Small Scale Industries, the Small Industries Development Organisation Group 'B' Posts Recruitment Rules, 2004.

(viii)

The Ministry of Small Scale Industries, Small Industry Development Organisation, (Group 'A') (Chemical Discipline) posts Recruitment Rules, 2006.

(ix)

The Ministry of Small Scale Industries, Small Industry Development Organisation, Group 'A' Posts (Glass and Ceramics Discipline) Recruitment Rules, 2006.

(x)

The Ministry of Micro, Small and Medium Enterprises, Office of the Development Commissioner (Micro, Small and Medium Enterprises), Group 'A' Gazetted Posts (Electronics and Electrical disciplines) Recruitment Rules, 2008.

(xi)

The Ministry of Micro, Small and Medium Enterprises, Office of the Development Commissioner (Micro, Small and Medium Enterprises), Group 'A' Posts (Hosiery Discipline) Recruitment Rules, 2008.

(xii)

The Ministry of Micro, Small and Medium Enterprises, Office of the Development Commissioner (Micro, Small and Medium Enterprises), Group 'A' Posts (Mechanical or Metallurgy disciplines) Recruitment Rules, 2008.

(xiii)

The Ministry of Micro, Small and Medium Enterprises, Office of the Development Commissioner (Micro, Small and Medium Enterprises), Group 'A' Posts (Metal Finishing Discipline) Recruitment Rules, 2009.

(xiv)

The Ministry of Micro, Small and Medium Enterprises, Office of the Development Commissioner (Micro, Small and Medium Enterprises), Group 'A' Posts (Mechanical or Metallurgy disciplines) Recruitment Rules, 2012.

(xv)

The Ministry of Micro, Small and Medium Enterprises, Office of the Development Commissioner (Micro, Small and Medium Enterprises), Group 'A' Gazetted Posts (Electronics and Electrical disciplines) Recruitment Rules, 2012.

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